

actment is a clear indication that at least some officials should be accountable in damages for their official acts. Thus, unless the threat of suit is also thought to injure the governmental decisionmaking process, the other unfortunate consequences flowing from damage suits against state officials are sufficient only to extend a qualified immunity to the official in question. Accordingly, the question whether a prosecutor enjoys an absolute immunity from damage suits under § 1983, or only a qualified immunity, depends upon whether the common law and reason support the proposition that extending absolute immunity is necessary to protect the *judicial process*.

II

The public prosecutor's absolute immunity from suit at common law is not so firmly entrenched as a judge's, but it has considerable support. The general rule was, and is, that a prosecutor is absolutely immune from suit for malicious prosecution. 1 F. Harper & F. James, *The Law of Torts* § 4.3, p. 305 n. 7 (1956) (hereafter Harper & James), and cases there cited; *Yaselli v. Goff*, *supra*; *Gregoire v. Biddle*, 177 F. 2d 579 (CA2 1949); *Kauffman v. Moss*, 420 F. 2d 1270 (CA3 1970); *Bauers v. Heisel*, 361 F. 2d 581 (CA3 1965); *Tyler v. Witkowski*, 511 F. 2d 449 (CA7 1975); *Hampton v. City of Chicago*, 484 F. 2d 602 (CA7 1973); *Barnes v. Dorsey*, 480 F. 2d 1057 (CA8 1973); *Duba v. McIntyre*, 501 F. 2d 590 (CA8 1974); *Robichaud v. Ronan*, 351 F. 2d 533 (CA9 1965). But see *Leong Yau v. Carden*, 23 Haw. 362 (1916). The rule, like the rule extending absolute immunity to judges, rests on the proposition that absolute immunity is necessary to protect the judicial process. Absent immunity, "it would be but human that they [prosecutors] might refrain from presenting to a grand jury or prosecuting a matter which in their judgment called for action; but